



TRUSTFORCE ADVISORS RESOURCE GUIDE

Guardianship Basics

Understanding Your Role as Guardian

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Purpose: This guide helps families, guardians, and professionals understand the basic responsibilities of guardianship and the importance of documentation, communication, and care planning. A guardian is often responsible for personal, medical, housing, safety, and care-related decisions for another person. Depending on the court order, the guardian may have broad authority or limited authority. ---

Section 1: What Is a Guardian?

A guardian is a person appointed to make decisions for another person who cannot fully make or communicate certain decisions independently.

Guardian of the Person

A guardian of the person may assist with

- Medical care
- Living arrangements
- Daily care
- Safety

- Education
- Transportation
- Personal needs
- Service coordination

Guardian of the Estate

A guardian of the estate may manage money or property. In many places, this role may also be called a conservator.

Conservator vs. Guardian

A simple way to explain the difference

- **Guardian:** Focuses on personal care, health, housing, and safety.
- **Conservator:** Focuses on money, property, assets, and financial records.

Some people may serve in both roles.

Section 2: Core Guardian Responsibilities

Health Care

A guardian may need to

- ☐ Schedule medical appointments
- ☐ Attend appointments
- ☐ Communicate with doctors
- ☐ Review care plans
- ☐ Track medications
- ☐ Monitor hospitalizations
- ☐ Keep copies of medical records
- ☐ Document major health decisions

Living Arrangements

The guardian may help decide where the person lives.

Consider

- Safety
- Accessibility
- Medical needs
- Family support
- Cost
- Transportation
- Supervision level
- Quality of care

Daily Care

Document needs related to

- Meals
- Hygiene
- Clothing
- Mobility
- Medication reminders
- Social activities
- Transportation
- Supervision

Section 3: Advocacy Responsibilities

A guardian often serves as the person's advocate.

This may include working with

- Doctors
- Hospitals
- Nursing homes
- Assisted living facilities
- Schools
- Social workers
- Case managers
- Benefit agencies
- Family members
- Attorneys
- Courts

Section 4: Documentation Every Guardian Should Keep

Medical File

- ☐ Doctor names
- ☐ Medication list
- ☐ Diagnoses
- ☐ Care plans
- ☐ Hospital discharge papers
- ☐ Insurance cards
- ☐ Appointment notes
- ☐ Therapy records

Care File

- ☐ Living arrangement records
- ☐ Incident reports
- ☐ Caregiver notes
- ☐ Facility contracts
- ☐ Service provider contacts
- ☐ Transportation records

Communication File

- ☐ Emails
- ☐ Letters
- ☐ Text summaries
- ☐ Phone call notes
- ☐ Family updates
- ☐ Agency communication

Section 5: Guardian Visit Log

Use this format after each visit.

Date: _____

Location: _____

Person visited: _____

Condition observed: _____

Concerns: _____

Needs identified: _____

Follow-up required: _____

Section 6: Red Flags Guardians Should Watch For

- Sudden weight loss
- Unexplained injuries
- Missed medication
- Poor hygiene
- Unsafe housing
- Isolation
- Financial exploitation concerns
- Facility complaints
- Unusual behavior changes

- Lack of food, clothing, or supplies

Section 7: Common Guardian Mistakes to Avoid

- Failing to visit regularly
- Not documenting decisions
- Ignoring medical instructions
- Missing court reports
- Making decisions outside the court order
- Poor communication with family or providers
- Not reporting major changes
- Failing to advocate when care is poor

Guardian Success Checklist

- ☐ Understand the court order
- ☐ Know your decision-making authority
- ☐ Maintain medical records
- ☐ Keep a visit log
- ☐ Communicate with providers
- ☐ Document major decisions
- ☐ Monitor living conditions
- ☐ Watch for neglect or exploitation
- ☐ Calendar court deadlines
- ☐ Ask for professional help when needed

Need Help Managing Fiduciary Responsibilities?

TrustForce Advisors provides professional support for conservators, guardians, trustees, veteran fiduciaries, families and caregivers, attorneys, and professionals.

Schedule a consultation today.

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